HEINONLINE

DATE DOWNLOADED: Mon Oct 11 21:13:13 2021
SOURCE: Content Downloaded from HeinOnline

Citations:

Bluebook 21st ed.
Debora L. Threedy, A Fish Story: Alaska Packers' Association v. Domenico, 2000 UTAH L. REV. 185 (2000).

ALWD 6th ed.
Threedy, D. L., A fish story: Alaska packers' association v. domenico, 2000(2) Utah L. Rev. 185 (2000).

APA 7th ed.
Threedy, D. L. (2000). fish story: Alaska packers' association v. domenico. Utah Law Review, 2000(2), 185-222.

Chicago 17th ed.
Debora L. Threedy, "A Fish Story: Alaska Packers' Association v. Domenico," Utah Law Review 2000, no. 2 (2000): 185-222

McGill Guide 9th ed.
Debora L Threedy, "A Fish Story: Alaska Packers' Association v. Domenico" (2000) 2000:2 Utah L Rev 185.

AGLC 4th ed.
Debora L Threedy, 'A Fish Story: Alaska Packers' Association v. Domenico' (2000) 2000(2) Utah Law Review 185.

MLA 8th ed.
Threedy, Debora L. "A Fish Story: Alaska Packers' Association v. Domenico." Utah Law Review, vol. 2000, no. 2, 2000, p. 185-222. HeinOnline.

OSCOLA 4th ed.
Debora L Threedy, 'A Fish Story: Alaska Packers' Association v. Domenico' (2000) 2000 Utah L Rev 185

-- Your use of this HeinOnline PDF indicates your acceptance of HeinOnline's Terms and Conditions of the license agreement available at https://heinonline.org/HOL/License
-- The search text of this PDF is generated from uncorrected OCR text.
-- To obtain permission to use this article beyond the scope of your license, please use: Copyright Information

A Fish Story: *Alaska Packers' Association v. Domenico*

Debora L. Threedy[*]

I. INTRODUCTION

A persistent criticism leveled against legal education is that it fails to teach cases in context.[1] The lack of context arises in two ways. First, the statement of facts in judicial opinions is extremely truncated[2] and is usually presented as if the facts of the case are not problematical or in dispute.[3] Second, appellate decisions are presented in textbooks and analyzed in classroom discussion with little or no discussion of the historical, economic, and social context in which the litigation arose and was pursued.[4]

The criticism concerning this lack of context has several facets. By simplifying the factual context and ignoring the larger societal context, legal education gives a distorted view of reality—litigation in a vacuum. Pedagogical research, moreover, suggests that adult learners (a category into which all law students fall) learn more easily and retain information more

---

[*]Professor, University of Utah College of Law. I wish to thank the Faculty Development Committee of the College of Law for supporting this research. I also wish to thank Jessica Woodhouse and the staff of the Quinney Law Library for their research assistance. Finally, I wish to acknowledge the helpful comments I have received from Judith Maute, whose work inspired my efforts here; from my colleagues who participated in a colloquium on this subject; and from Alex Skibine, Kristin Clayton, and Lindsay Robertson, who directed me to similar work done by others.

[1]*See, e.g.*, LANI GUINIER, MICHELLE FINE & JANE BALIN, BECOMING GENTLEMEN: WOMEN, LAW SCHOOL AND INSTITUTIONAL CHANGE 14–15 (1997)

[2]*See, e.g.*, Debora L. Threedy, *The Madness of a Seduced Woman: Gender, Law and Literature*, 6 TEX. J. WOMEN & L. 1, 9–10 (1996) (asserting that judicial versions of "facts" are highly selective and chosen for "maximum persuasiveness").

[3]This is partly a function of the appellate stage; the facts were "found" by the trial court and are rarely revisited by the appellate court. Note the assumption implicit in the use of the word "found." It implies that the facts are pre-existing and the trial court's function is to discover what they are. The reality of a trial, however, is that it often involves interpretation, for example of the most probable deductions to be made from circumstantial evidence. A trial court does not actually "find" the facts in the sense of conducting an investigation; it determines what is most likely to have occurred given the evidence that was offered and admitted into court. *See, e.g.*, Threedy, *supra* note 2, at 10; *see also* Ann Shalleck, *Constructions of the Client Within Legal Education*, 45 STAN. L. REV. 1731, 1733–35 (1993) (asserting that courts present facts as an "unproblematic account of what happened," when actual experiences "almost certainly" differ).

[4]"Too often we teach law courses as perspectiveless, adopting an analytical approach that consciously acknowledges no specific cultural, political or class characteristics . . . " Taunya Lovell Banks, *Teaching Laws With Flaws: Adopting a Pluralistic Approach to Torts*, 57 MO. L. REV. 345, 443 (1992).

solidly when the material is presented in context.[5] Finally, and perhaps not unrelated to the preceding point, students (particularly female students[6]) often express feelings of alienation arising in part from the lack of context in which they feel compelled to learn the law.[7]

At the same time, there seems to be a growing interest among legal historians and scholars in exploring the social and historical background of the litigation that has been reduced to a judicial opinion.[8] I suspect that this

---

[5]*See, e.g.*, Cathaleen A. Roach, *A River Runs Through It: Tapping Into the Informational Stream to Move Students from Isolation to Autonomy*, 36 ARIZ. L. REV 667, 680–82 (1994) (discussing how to use contextual teaching to promote independent learning).

[6]My own interest in exploring the context of cases, something I consistently try to do in my teaching, particularly in first year Contracts and Civil Procedure, is animated by feminism. I view this kind of work as "feminist" in the broadest sense of that word, both because I, like many women lawyers, hunger for the human context in law and because, in my opinion, women law students in particular seem to suffer from the abstract presentation of cases in classroom discussions. "[Women law students] want to learn the stories behind the cases." GUINIER, *supra* note 1, at 14–15.

[7]*See* GUINIER, *supra* note 1 at 15; *see also* Margaret E. Montoya, *Mascaras, Trenzas, Y Greñas: Un/Masking the Self While Unbraiding Latina Stories and Legal Discourse*, 17 HARV. WOMEN'S L.J. 185, 201–09 (1994) (discussing importance of considering cultural and social factors in studying cases).

[8]Richard Danzig is considered by some to be the one who set this trend in motion with his 1975 article, Hadley v. Baxendale: *A Study in the Industrialization of the Law*, 4 J. LEG STUDIES 249 (1975). *See* A CONTRACTS ANTHOLOGY 183 (Peter Linzer, ed., 2d ed. 1995) [hereinafter A CONTRACTS ANTHOLOGY]. For other examples of this type of research, see Charles W. Adams, World-Wide Volkswagen v. Woodson–*The Rest of the Story*, 72 NEB. L. REV. 1122 (1993), *reprinted in* CIVIL PROCEDURE ANTHOLOGY 554 (David I. Levine et al. eds. 1998) [hereinafter CIVIL PROCEDURE ANTHOLOGY]; Banks, *supra* note 4; Paul Coady, *Dredging the Depths of* Hickman v. Taylor, 64 HARV. L. RECORD 2 (May 6, 1977), *reprinted in* CIVIL PROCEDURE ANTHOLOGY 573; RICHARD DANZIG, THE CAPABILITY PROBLEM IN CONTRACT LAW: FURTHER READINGS ON WELL-KNOWN CASES (1978) (discussing *Sullivan v. O'Connor*, *Jacob & Young v. Kent*, and *Ortelere v. Teacher's Retirement Board*, among others) [hereinafter THE CAPABILITY PROBLEM]; Lawrence M. Grosberg, *The Buffalo Creek Disaster: An Effective Supplement to a Conventional Civil Procedure Course*, 37 J. LEGAL EDUC. 378 (1987); LEWIS A. GROSSMAN & ROBERT G. VAUGHN, A DOCUMENTARY COMPANION TO A CIVIL ACTION (1999); Alfred S. Konefsky, *How to Read, Or at Least Not Misread, Cardozo in the Allegheny College Case*, 36 BUFF. L. REV. 645 (1987), *reprinted in* A CONTRACTS ANTHOLOGY 219; Robert H. Lande, *A Law & Economics Perspective on a "Traditional" Torts Case: Insights for Classroom and Courtroom*, 57 MO. L. REV. 345, 399 (1992); Paul A. Lombardo, *Three Generations, No Imbeciles: New Light on* Buck v. Bell, 60 N.Y.U. L. REV. 30 (1985); Judith L. Maute, Peevyhouse v. Garland Coal & Mining Co. *Revisited: The Ballad of Willie and Lucille*, 89 NW. U. L. REV. 501 (1995), *reprinted in* A CONTRACTS ANTHOLOGY 236; Wendy C. Perdue, *Sin, Scandal, and Substantive Due Process: Personal Jurisdiction and* Pennoyer *Reconsidered*, 62 WASH. L. REV. 479 (1987), *reprinted in* CIVIL PROCEDURE ANTHOLOGY 541; Walter F. Pratt, Jr., *American Contract Law at the Turn of the Century*, 39 S.C. L. REV. 415 (1988), *reprinted in* A CONTRACTS ANTHOLOGY 148; Bob Rizzi, Erie *Memoirs Rreveal Drama, Tragedy*, 63 HARV. L. RECORD 2 (Sept. 24, 1976), *reprinted in* CIVIL PROCEDURE ANTHOLOGY 569; Ann C. Shalleck, *Feminist Legal*

is part of a larger project which seeks to study law within a broader social context. During the same period, for example, we have seen the rise of interdisciplinary approaches to legal study: the "law and" movements such as law and literature, law and psychiatry, etc.[9]

This article explores the context of one of the canonical first year contract cases, *Alaska Packers' Ass'n v. Domenico.*[10] The case involves a wage dispute between a group of Alaskan Salmon fishermen and their employer, the operator of a salmon cannery. In the first section, I present a traditional, straight-forward analysis of the district and circuit court opinions. I also examine how other legal scholars, relying solely on the written opinions (in fact, apparently relying almost exclusively on the appellate court opinion), have interpreted the case, what it means and what it stands for. In other words, the "traditional" interpretation of the case is explicated.

In the following section, I present the "background story." I attempt to situate the legal decision in the context of the growth of the salmon industry and the formation of the Alaska Packers' Association ("Alaska Packers")—"the fish trust" that operated the cannery at Pyramid Harbor. I also provide details about the cannery operation at Pyramid Harbor, Alaska, which is where the "action" of the case occurs.

In the third section, I propose several alternative interpretations of the case. These alternative interpretations are informed by a close reading of the trial transcript[11] and by an examination of the conditions of the Alaskan salmon industry at the turn of the century. The alternative narratives I propose cannot help but reflect the context in which I write and thus may say more about the turn of the twentieth century than they do about the turn

---

Theory and the Reading of O'Brien v. Cunard, 57 MO. L. REV. 345. 371 (1992); A.W. Brian Simpson, *Contracts for Cotton to Arrive: The Case of the Two Ships* Peerless, 11 CARDOZO L. REV. 287 (1989), *reprinted in* A CONTRACTS ANTHOLOGY 200; A.W. BRIAN SIMPSON, LEADING CASES IN THE COMMON LAW (1995) (discussing *Shelley's Case, Ryland & Horrocks v. Fletcher, Carlill v. Carbolic Smoke Ball*, among others); Anthony Jon Waters, *The Property in the Promise: A Study of the Third Party Beneficiary Rule*, 98 HARV. L. REV. 1109 (1985) (discussing *Lawrence v. Fox*, 20 N.Y. 268 (1859)), *reprinted in* A CONTRACTS ANTHOLOGY 384; Geoffrey R. Watson, *In the Tribunal of Conscience:* Mills v. Wyman *Reconsidered*, 71 TULANE L. REV. 1749 (1997).

[9]*See* Brian Leiter, *Intellectual Voyeurism in Legal Scholarship*, 4 YALE J. L. & HUMAN. 79 (1992). "Arguably, the most important general development in legal scholarship over the past two decades has been the remarkable flourishing of interdisciplinary work bringing together law and the humanities and social sciences." *Id.*

[10]117 F. 99 (9th Cir. 1902), *reversing* Domenico v. Alaska Packers' Ass'n, 112 F. 554 (N. D. Cal. 1901).

[11]*See* Record on Appeal. Copies of the Record on Appeal are available upon request from the author.

of the nineteenth. In particular, this article reflects a philosophical bent that questions traditional, authoritative narratives and is open to revisionist accounts.

The metaphor of an archaeological dig is appropriate here:

> [A] reported case does in some ways resemble those traces of past human activity—crop marks, post holes, the footings of walls, pipe stems, pottery shards, kitchen middens, and so forth, from which the archaeologist attempts, by excavation, scientific testing, comparison, and analysis to reconstruct and make sense of the past. Cases need to be treated as what they are, fragments of antiquity, and we need, like archaeologists, gently to free these fragments from the overburden of legal dogmatics, and try, by relating them to other evidence, which has to be sought outside the law library, to make sense of them as events in history and incidents in the evolution of the law.[12]

The "excavation" of the *Alaska Packer* case is motivated by a desire to "make sense" of it. Many of the sources used in this paper have been found "outside the law library." They include, among others, the corporate records of Alaska Packers as well as contemporaneous government reports. I use information revealed by these sources "gently to free" the case from the "overburden" of questionable assumptions made by the judges in the case and scholarly commentators since then. By doing so, I hope that students and scholars of the law will view the case in a new and more informed light.

II. THE TRADITIONAL STORY

A. The District Court Opinion

The published opinion by the District Court for the Northern District of California is dated December 9, 1901.[13] It is authored by District Judge De Haven. John Jefferson De Haven was born in St. Joseph, Missouri, in

---

[12]Simpson, *supra* note 8, at 12. *See also* Threedy, *supra* note 2, at 10 n.45 (discussing importance of teaching students to consider implicit questions not present in case itself). Professor Simpson suggests the wonderful term "legal archaeology" to describe this category of legal scholarship. *See* Simpson, *supra* note 8, at 12.

[13]*See Alaska Packers' Ass'n*, 112 F. at 554. Originally, the date caused me some confusion, as the two-day trial occurred on November 26 and 27, 1900. It had been my impression (apparently erroneous) that the problem of a significant time gap between judicial hearing and written decision was a relatively recent one.

1845.[14] He was brought to California in 1849, grew up in Eureka, attended public schools, was admitted to the bar in 1866 and was married in 1872.[15] He had a long political career including terms as a district attorney, county assemblyman, state senator, city attorney, congressman, state supreme court justice, and finally, in June 1897, he was appointed federal district court judge.[16]

The facts of the case, as summarized by Judge DeHaven, are these: Libelants,[17] fishermen and seamen, sued to recover $50 each on a contract alleged to have been entered into on May 22, 1900, in Pyramid Harbor, Alaska.[18] Previously, on March 26, 1900, before departing San Francisco for Alaska, the libelants had signed a contract with Alaska Packers in which they agreed to work for $50 for the season plus two cents for each red salmon caught.[19] (Some of the libelants had signed shipping articles[20] on April 5, 1900, which provided that they would be paid $60 plus two cents for each red salmon.[21]) Libelants, in addition to their duties as fishermen, also were required to sail the ship to and from Alaska and to discharge and load the ship's cargo at Pyramid Harbor.

---

[14]*See* HISTORY OF THE BENCH AND BAR OF CALIFORNIA: BEING BIOGRAPHIES OF MANY REMARKABLE MEN, A STORE OF HUMOROUS AND PATHETIC RECOLLECTIONS, ACCOUNTS OF IMPORTANT LEGISLATION AND EXTRAORDINARY CASES, COMPREHENDING THE JUDICIAL HISTORY OF THE STATE 658 (Oscar Tully Shuck, ed. 1901).

[15]*See id.*

[16]*See id.*

[17]Because the case is an admiralty case, the parties in the position of a plaintiff are called libelants. *See* BLACK'S LAW DICTIONARY 916 (6th ed. 1990).

[18]*See Alaska Packers' Ass'n*, 112 F. at 554–55. Pyramid Harbor is across the Chilkat River from Haines, Alaska, and the site of Foit Seward. It is on the upper part of the Inside Passage, about 14 miles south of Skagway and 80 miles north of Juneau, Alaska. *See Alaska Internet Travel Guide* <http://www.alaskaone.com/haines/bells.htm> (last visited Nov. 7, 2000).

[19]*See Alaska Packers' Ass'n*, 112 F. at 555.

[20]"The shipping article is the contract of employment between the master and the seaman." MARTIN J. NORRIS, 1 THE LAW OF SEAMEN 176–79 (1985). The master of the vessel acts as agent for the owner. *See id.*

[21]*See Alaska Packers' Ass'n*, 112 F. at 555. The discrepancy between the $50 in the contracts and the $60 in the shipping articles is never explained.

Shortly after arriving in Pyramid Harbor[22] libelants "became dissatisfied"[23] and refused to work unless their pay was raised to $100 for the season, plus two cents for each red salmon caught.[24] The court noted that Alaska Packers had $150,000 invested in the cannery and that "no other men could be engaged to take the places of libelants during that fishing season."[25]

In these circumstances, the superintendent of the cannery agreed to the raise in wages, but at the end of the season, back in San Francisco, the company refused to pay anything beyond the amounts of the original agreements.[26] Under protest, the fishermen took the payment and executed releases.[27] The fishermen then brought suit for the difference between what they were paid and what they argued they were entitled to under the May contract.

Alaska Packers' answer raised three defenses: (1) there was no consideration for the contract sued upon and thus it was unenforceable; (2) the superintendent was without authority to bind the company; and (3) the releases signed by the fishermen when they were paid precluded suit on the disputed contract.[28]

The district court briefly disposed of two of these issues. Although Hugh Murray, the superintendent at Pyramid Harbor, argued he had no authority to enter into a new contract, the court found that Alaska Packers was estopped from denying his authority.[29] Finally, as to the releases, the court applied the admiralty rule; because "seamen are usually improvident, and often ignorant of their rights, they are frequently tempted by their

---

[22]Apparently, they arrived in Pyramid Harbor on April 27, 1900. *See* Record at 52, Alaska Packers' Ass'n v. Domenico, 117 F. 99 (9th Cir. 1902) (No. 789). The superintendent of the canning factory at Pyramid Harbor, Hugh Murray, testified that they arrived on April 7th, *see* Record at 106, but this was not possible if some men signed the shipping articles in San Francisco on April 5th, as was indicated by the trial court. *See Alaska Packers' Ass'n*, 112 F. at 555. The voyage between San Francisco and Pyramid Harbor could take anywhere from two weeks to a month, with an average of twenty-two days, depending on the winds. *See* Record at 131.

[23]*Alaska Packers' Ass'n*, 112 F. at 555.

[24]*See id.*

[25]*Id.*

[26]*See id.* at 555–56.

[27]*See id.* at 556.

[28]*See id.* at 555.

[29]*See Alaska Packers' Ass'n*, 112 F. at 559.

necessities to take less than is due them,"[30] and thus signing a release does not bar their suit for wages.[31]

The bulk of the district court's analysis focused on the enforceability of the May contract. First, the court considered the question of the nets. The fishermen argued that Alaska Packers failed to provide them with "serviceable nets in which an average catch of fish could be taken"[32] even though it had agreed to do so. They further argued that this default justified their refusal to work unless additional compensation was given to them. The court's treatment of this argument is worth quoting in full:

> The contention of libelants that the nets provided them were rotten and unserviceable is not sustained by the evidence. The defendant's interest required that libelants should be provided with every facility necessary to their success as fishermen, for on such success depended the profits defendant would be able to realize that season from its packing plant, and the large capital invested therein. In view of this self-evident fact, it is highly improbable that the defendant gave libelants rotten and unserviceable nets with which to fish. It follows from this finding that libelants were not justified in refusing performance of their original contract.[33]

Thus, the court rejected the fishermen's argument that Alaska Packers was the first party to breach the contract by failing to provide serviceable nets.

As the fishermen were not justified in refusing to perform the original contract and thus it continued in force, the court agreed with Alaska Packers that there was no new consideration for the May contract. That contract required the fishermen to do what they were already obligated to do under the previous agreements.[34]

The district court, however, drew a distinction between executory contracts and contracts where performance has been rendered; the court agreed that in the latter class of contracts any modification would require new consideration.[35] But with regard to executory contracts, where prior to the completion of performance one party refuses to perform unless additional payment is made, the court noted that there was a split of

---

[30]*Id.* at 560.

[31]*See id.* "For an interesting explanation of the law's solicitude for seamen at a time when other workers were left to the mercies of 'freedom of contract,' see the opinion of Circuit Judge Jerome Frank in Hume v. Moore-McCormack Lines, 121 F.(2d) 336 (C. C. A. 2d, 1941)." Robert L. Hale, *Bargaining, Duress, and Economic Liberty*, 43 COLUM. L. REV. 603, 621 n.37 (1943).

[32]*Alaska Packers' Ass'n*, 112 F. at 556.

[33]*Id.*

[34]*See id.*

[35]*See id.*

authority. In such circumstances, some courts had found the modification to be without consideration and thus unenforceable, while other courts had found that the parties implicitly terminated the original contract and entered into a "new" agreement.[36] The court then sided with the novation cases.

In particular, the district court relied upon the case of *Goebel v. Lin*.[37] In *Goebel*, the Belle Isle Ice Co. promised to provide brewers with all the ice they needed for the season at $1.75 per ton unless there was a scarcity of ice, in which case the price was to be $2 per ton.[38] Halfway through the term of the contract, the ice company refused to deliver any more ice unless the brewers agreed to pay $3.50 per ton.[39] As the brewers had a considerable stock of beer on hand which would be ruined if not kept chilled, and because they were unable to procure ice elsewhere, the brewers agreed to the price increase.[40] As in the present case, however, the brewers subsequently refused to pay the additional price, arguing that there was no consideration for the new contract and that it had been obtained by duress.[41]

The *Goebel* court ruled in favor of the ice company.[42] It reasoned that "[i]f the ice company has the ability to perform their contract but took advantage of the circumstances to extort a higher price from the necessities of the [brewers], its conduct was reprehensible."[43] The court, however, noted that the brewers thought it was better to accede to the ice company's demand for a higher price than to bring suit for breach of the original contract.[44] The court noted that the brewers' reason for doing this was not explained.[45] The court then created a hypothetical case where there has been an unforeseeable change in circumstances: "Suppose, for example, the [brewers] had satisfied themselves that the ice company under the very extraordinary circumstances of the entire failure of the local crop of ice must be ruined if their existing contracts were to be insisted upon, and must be utterly unable to respond in damages."[46] The *Goebel* court thought that in these circumstances a reasonable person would renegotiate the contract.[47]

---

[36]*Id.* at 557.
[37]11 N.W. 284 (Mich. 1882).
[38]*See id.* at 284–85.
[39]*See id.*
[40]*See id.*
[41]*See id.*
[42]*See id.* at 286–87.
[43]*Goebel*, 11 N.W. at 285.
[44]*See id.*
[45]*See id.*
[46]*Id.*
[47]*See id.* at 285–86.

Implicitly, the court presumed that the brewers had some such reason for agreeing to the new contract, and thus upheld it.[48]

Finally, the *Alaska Packers'* district court considered whether the new contract was obtained by duress, and concluded that "the facts appearing here do not show that the defendant acted under duress, in making [the new] contract."[49] The court reasoned that because defendant could have sued on the original contract, they had another option—even though the court acknowledged that the libelants were judgment proof.[50]

Alaska Packers moved for rehearing after the district court issued its opinion, and on rehearing the court elaborated on its reasons for finding no duress:

> [I]t is clear that no legal duress can be found in the circumstances under which the new contract was made. The libelants were not guilty of intimidation, and did nothing whatever to prevent the defendant from securing other men to take their places. If there had been an attempt upon their part to intimidate other men from taking the places which they voluntarily quit, a very different case would be presented, but nothing of that kind appears, and the fact that there were no other men there, who could be engaged for that service, does not alter the case.[51]

The district court ordered Alaska Packers to pay each fisherman[52] an additional $50 plus interest.[53]

B. The Appellate Court Opinion

Alaska Packers took an appeal from the adverse decision in the trial court. The Ninth Circuit rendered its decision on May 26, 1902, five months after the final order in the trial court. The panel was made up of Circuit Court Judges Gilbert and Ross and District Court Judge Hawley.[54] The opinion was authored by Judge Ross. His background was very different than that of Judge De Haven.

---

[48]*See id.* at 286.

[49]*Alaska Packers' Ass'n*, 112 F. at 558.

[50]*See id.* at 558–59.

[51]Record at 161 (citation omitted).

[52]The court excepted one George Bataillou from its order. *See* Record at 165. Apparently, Bataillou had actually returned to San Francisco. He got on a ferry, which conveyed him to Juneau, and from there apparently he got passage to San Francisco. *See* Record at 110–12.

[53]*See* Record at 165.

[54]*See Alaska Packers' Ass'n*, 117 F. at 100.

Judge Erskine M. Ross was born in Culpepper County, Virginia, in 1845, "the son of a planter."[55] He attended the Virginia Military Institute and fought on the Confederate side during the Civil War.[56] He came to California in 1868 and lived with his uncle, a state senator and prominent attorney. After studying law under his uncle for two years, he was admitted to the bar and achieved "professional fame and financial prosperity at an exceptionally early age."[57] At the age of thirty-four he was chosen justice of the state supreme court where he served until 1887 when he was appointed a U.S. district court judge and then circuit judge in 1895. Married with a son, he owned one of the largest and most profitable orange orchards in the state, Rossmoyne. "His enlightened firmness in the discharge of judicial duty . . . was well evidenced during the great railroad strikes of 1894."[58] In that year, then District Judge Ross entered an injunction requiring striking railway workers "to perform all of their regular and accustomed duties"[59] thus effectively enjoining the workers from striking.

Regarding the issue of the nets, the appellate court said "the evidence was substantially conflicting, and the finding of the court was against the libelants."[60] Because the evidence was conflicting, the appellate court deferred to the district court "who heard and saw the witnesses."[61]

The appellate court then noted that the "real questions in the case . . . are questions of law."[62] The court found it necessary to consider only one such: whether there was consideration for the May contract.[63] The court's analysis of this issue is based upon its determination of the weight to be given to the opposing precedents. The court noted that the district court, in holding that there was a novation of the contract and thus

---

[55]SHUCK, *supra* note 14, at 657.

[56]In 1864, when he was a member of the corps of cadets at the Institute, he took part in the battle of New Market, where 55 of the 190 cadets were killed or wounded. *See id.*

[57]*Id.*

[58]*Id.* The "great strikes" referred to are, of course, the Pullman strike, "the largest concentrated labor action in the nation's history." J.ANTHONY LUKAS, BIG TROUBLE: A MURDER IN A SMALL WESTERN TOWN SETS OFF A STRUGGLE FOR THE SOUL OF AMERICA 208 (1997).

[59]Southern California Ry. Co. v. Rutherford, 62 F. 796, 798 (1894).

[60]*Alaska Packers' Ass'n*, 117 F. at 101.

[61]*Id.*

[62]*Id.* at 102.

[63]*See id.* The court does not address whether the superintendent had authority to execute the contract and whether the libelants' suit was barred by the releases. However, the court, in rejecting the district court's conclusion that the defendant could waive its right to sue on the breached contract and make a new one, reasons that if the superintendent lacked the power to execute a contract he would also necessarily lack the power to waive the defendant's rights under the original contract. *See id.* Thus, the court seems to decide the issue of the superintendent's authority indirectly.

consideration, relied upon eight cases: five from Massachusetts; two from Michigan, which relied upon the Massachusetts authority; and one from Vermont, which was impliedly overruled by a later Vermont Supreme Court case.[64] Conversely, the court noted that the "weight of authority" holds that there is no consideration for the new contract when one party promises only to do what it was previously bound to do, and cited cases from fifteen jurisdictions.[65] Additionally, the appellate court briefly distinguished the *Goebel* case, upon which the district court had relied heavily, by saying that it "presented some unusual and extraordinary circumstances."[66]

The court did state that it thought the Massachusetts rule "wrong on principle"[67] but did not explicitly state what that principle might be. Clues to the court's policy decision can be found, however, both in the way the court summarized the facts of the case before it and from language quoted from other cases. Both of these sources come very close to characterizing the case as one involving duress.

For example, the court summarized the facts in the *Alaska Packers'* case as follows:

> [The fishermen agreed to serve] in remote waters where the season for [fishing] is extremely short, and in which enterprise the appellant had a large amount of money invested; . . . and at a time when it was impossible for the appellant to secure other men in their places, the libelants, *without any valid cause*, absolutely refused to continue the services they were under contract to perform . . . . The case shows that they *wilfully and arbitrarily* broke that obligation . . . . Certainly, it cannot justly be held...that there was any voluntary waiver on the part of the appellant of the breach of the original contract.[68]

Additionally, the court quoted the Minnesota Supreme Court:

> No astute reasoning can change the plain fact that the party who refuses to perform, and thereby *coerces* a promise from the other party to the contract to pay him an increased compensation for doing that which he

---

[64]*See id.* at 104.

[65]*See id.* at 105.

[66]*Alaska Packers' Ass'n*, 117 F. at 105. Although ambiguous, the court's comment seems to accept as a fact the failure of the entire ice crop. The *Goebel* court's statement about the failure of the ice crop however, was part of the court's hypothetical. *See supra* note 46 and accompanying text.

[67]*Id.* at 105.

[68]*Id.* at 102 (emphasis added). The court's conclusion that the fishermen broke the first contract without cause is a consequence of the district court's factual finding that the nets were sufficient. *See id.* at 101.

> is legally bound to do, *takes an unjustifiable advantage of the necessities of the other party.*[69]

In a similar vein, the court quoted a Missouri case in which the court held that to permit a party to refuse to perform a contract unless additional money is paid "would be to offer a premium upon *bad faith*, and invite men to violate their most sacred contracts that they may profit by their own wrong."[70]

The appellate court does not technically hold that the new contract is void due to duress; its holding is that the new contract is unenforceable due to a lack of consideration. Nevertheless, the court's rhetoric is that of bad faith and coercion on the part of the fishermen.

C. Scholarly Interpretation

The Ninth Circuit's implicit characterization of the case as one involving duress has become the accepted reading of the case. Several scholars have discussed the case and each paints a similar picture of bad faith and taking advantage of another's necessities.

Richard Posner, a leading law and economics scholar and himself an appellate judge, characterizes *Alaska Packers'* as a "monopoly" case.[71] He labels it "a clear case where the motive for the modification was simply to exploit a monopoly position conferred on the [fishermen] by the circumstances of the contract."[72] In other words, he assumes that the fishermen realized that the company had no chance of replacing their services once they were in Alaska and that their threatened walkout was motivated solely by the desire to take advantage of that fact.

Posner distinguishes this monopolistic refusal to comply with a contract from cases involving changed circumstances, in which latter category he puts the *Goebel* case. In doing so, he assumes the failure of the

---

[69] *Id.* at 102 (quoting King v. Duluth M.&N. Ry. Co., 63 N.W. 1105, 1106–07 (Minn. 1895)) (emphasis added).

[70] *Id.* at 103 (quoting Lingenfelder v. Mainwright Brewery Co., 15 S.W. 844, 848 (Mo. 1891)) (emphasis added).

[71] *See* Richard A. Posner, *Gratuitous Promises in Economics and Law* 46, *in* 56 THE ECONOMICS OF CONTRACT LAW (Anthony T. Kronman & Richard A. Posner, eds. 1979).

[72] *Id.* at 57. The circumstances referred to are the short season in remote waters without the possibility of replacements. *Cf.* ROBERT E. SCOTT & DOUGLAS L. LESLIE, CONTRACT LAW & THEORY 338 (2d ed. 1993) (quoting Posner and commenting ironically on his position).

ice crop as a fact.[73] He contrasts a threat to repudiate, which is "a response to external conditions genuinely impairing the promisor's ability to honor the contract" with a threat of nonperformance, which is "merely a strategic ploy designed to exploit a monopoly position" and concludes that there should be a "firm rule of nonenforceability" in the latter type of cases.[74]

Marvin Chirelstein, a contracts scholar from Columbia University, offers a similar reading of *Alaska Packers'*, which he discusses under the rubric of duress.[75] Chirelstein, like Posner, examines the context of a threat not to perform in order to determine whether it is legitimate bargaining behavior or extortion.[76] He does not consider the threat of nonperformance in *Alaska Packers'* to be difficult to classify, comparing it to the classic "gun-to-the-head case" of extortion:

> Plainly, the defendant's consent to the pay raise was a forced consent, the alternative being the loss of much of its investment in the cannery itself. The plaintiffs apparently timed their threat so as to maximize the defendant's vulnerability—plaintiffs had received no competing offer and no change had occurred in the market for their services or the conditions of their work that would explain or legitimate an effort to get an increase in compensation. . . . [T]here appears to have been considerable justification for applying the doctrine of duress.[77]

The traditional reading of *Alaska Packers'* is therefore, one of the wily fishermen taking calculated and unfair advantage of the vulnerable cannery, conduct coming close to if not actually constituting economic duress.[78]

---

[73]"An unusually mild winter ruined the local ice 'crop' and the ice company informed the defendants that it would not continue to supply them with ice at the contract price." Posner, *supra* note 71, at 55.

[74]*Id.* at 57. *See also* Mary Lou Serafine, Note, *Repudiated Compromise after Breach*, 100 YALE L.J. 2229 (1991) (advocating changed circumstances rule for determining whether to uphold repudiated compromise). In the Note, the author labels the *Alaska Packers'* case an example of the "hold-up problem." *Id.* at 2244.

[75]*See* MARVIN A. CHIRELSTEIN, CONCEPTS AND CASE ANALYSIS IN THE LAW OF CONTRACTS 65 (3d ed. 1998). *See also* Serafine, *supra* note 74, at 2235 (concluding that *Alaska Packers'* court found evidence of "economic duress"). Chirelstein's assumption that Alaska Packer would lose "much of its investment in the cannery itself" is unfounded. *See infra* notes 202–18 and accompanying text.

[76]*See* CHIRELSTEIN, *supra* note 75, at 64.

[77]*Id.* at 65. Note that neither court relied upon duress in its analysis; in fact, the district court explicitly rejected that doctrine in the circumstances of the case.

[78]I confess that from my first reading of the case I was skeptical about the reality of the traditional reading, doubting that the Alaska Packers Association was ever at the mercy of the fishermen. Everything I have since learned about the case has only deepened my skepticism.

III. The Background Story: Alaska Canneries in the Gilded Age

> *Between 1850 and 1900, the population swelled; the cities grew enormously; the Far West was settled; the country became a major industrial power; transportation and communication vastly improved; overseas expansion began. New inventions and new techniques made life easier and healthier; at the same time, the social order became immeasurably more complex, and perhaps more difficult for the average person to grasp. New social cleavages developed . . . . When the blood of the Civil War dried, the Gilded Age began. This was the factory age, the age of money, the age of the robber barons, of capital and labor at war.*[79]

In the last twenty-two years of the nineteenth century, a new industry came into being: the Alaskan canned salmon industry. Those years saw an amazing explosion of canneries in Alaskan waters, from two in 1878 to forty-two in 1900,[80] with thirty opened in a single year, 1889.[81] The industry owed its existence to technological innovations introduced only decades before. Huge fortunes were made in the course of a season or two. Packing companies, threatened by this exponential growth, entered into combinations known as "the fish trusts." What was happening in Alaska was merely an outgrowth and reflection of what was happening across the United States. And with this growth came social unrest. Class and ethnicity, race and language, all served to fragment society, to create "us" and "them." This, too, was occurring in Alaska.

A. The Birth of the Salmon Industry

In the second half of the nineteenth century, large-scale exploitation of salmon as a food resource began.[82] The spur to large-scale exploitation was the development of a reliable method of canning. Canning allowed salmon to be transported over long distances and stored for extended periods without spoiling, and canned salmon was more palatable to consumers than salted salmon.[83]

---

[79] LAWRENCE M. FRIEDMAN, A HISTORY OF AMERICAN LAW 338 (2d ed. 1985) (italics added).

[80] *See* Alaska Packers Association Records Microfiche No. 308, "Canneries Operated in Alaska from the inception of business in 1878" [hereinafter APA microfiche].

[81] *See* MARSHALL MACDONALD, REPORT ON THE SALMON FISHERIES OF ALASKA, H.R. MISC. DOC. No. 122, at 3 (1893).

[82] *See* IAN DORE, SALMON: THE ILLUSTRATED HANDBOOK FOR COMMERCIAL USERS 4 (1990) (briefly describing history of salmon industry).

[83] *See* COURTLAND L. SMITH, SALMON FISHERS OF THE COLUMBIA 15 (1979) (describing development of salmon canning industry on Pacific Coast).

In 1864, Hapgood, Hume and Co. established the first salmon cannery, on the Sacramento River in California.[84] "The cans were hand-soldered and the secret of sealing the cans was carefully maintained: Andrew Hapgood, who had worked at a lobster cannery in Maine, sealed all the cans himself behind closed doors."[85] Two years later, the company moved to the Columbia River.[86] That year the company packed and sold 4000 cases of salmon[87] for $16 per case.[88] The success of this pioneer company led to the development of other canneries; by 1873, there were seven canneries operating on the Columbia.[89] Two years later, there were fourteen.[90]

During the 1870's, salmon canning on the Columbia River was a prosperous business. During this period there were no failures among the canning companies.[91] However, in the following decade, canneries saw profits decline: "the competition for fish and markets resulted in higher prices for fishermen and lower selling prices for the finished product."[92]

Many of the pioneers who began on the Columbia River spread to other localities because of growing concerns that the Columbia was "fished out."[93] Alaska salmon canning began in 1878; the first two canneries were built at Old Sitka and Klawak.[94] In 1887, the Alaska Commercial Company established a cannery on the Karluk River, which made an "immense" pack in 1887 and 1888, "the fame of which quickly extended to San Francisco."[95]

---

[84]*See* DORE, *supra* note 82, at 196.

[85]*Id.* The method of canning food originated in France. Napolean offered a prize of 12,000 francs to anyone who devised a way to store food for sailors. In 1809, Nicholas Appert claimed the prize; he cooked and sealed foods in glass jars. In 1819, Thomas Kensett introduced canning to the United States. In 1839, tin cans were substituted for glass. *See* SMITH, *supra* note 83, at 15–16.

[86]*See* SMITH, *supra* note 83, at 16.

[87]A case of canned salmon was made up of 48 one pound cans.

[88]*See* SMITH, *supra* note 83, at 17.

[89]*See id.*

[90]*See id.* at 18.

[91]*See id.*

[92]*Id.* In 1866, fishermen on the Columbia River received 15 cents per fish; by 1880, they were receiving 50 cents. During the same period, the price of a case of canned salmon dropped from $16 to $5. *See id.* Canneries on the Columbia River knew by 1883-84 that they had saturated the market. *See id.* at 21. The Columbia River Packers Association, however, was not formed until 1899. *See id.* at 54.

[93]*Id.* at 20.

[94]*See* Ellen Greenberg, *Historical Note on the Alaska Packers Association and the Company Records* 2, *in* PHYLLIS DEMUTH & MICHAEL SULLIVAN, A GUIDE TO THE ALASKA PACKERS ASSOCIATION RECORDS 1891-1970 IN THE ALASKA HISTORICAL LIBRARY (Alaska Dept. of Education 1983).

[95]MACDONALD, *supra* note 81, at 2. The author notes that this fame had two important consequences: it attracted the attention of investors who saw the promise of "extravagant returns for the capital invested" and the attention of Congress to the necessity of protecting

The next year, more than thirty new canneries were established[96] for a total of thirty-seven canneries.[97]

B. The Fish Trust

In the late 1880's, production far outstripped demand for canned salmon. In 1889, 1890, and 1891, canneries packed more salmon than they could sell. At the beginning of the 1891 season, "it was reported that 600,000 cases of canned salmon were in San Francisco warehouses and that in London about 400,000 cases . . . were still on the market."[98] This represented about two-thirds of the total average annual pack for the entire Pacific Coast.[99] This over-supply inevitably led to a drop in price. "Finding that the market was overstocked and the price of canned salmon reduced in consequence, so that in many cases business became unprofitable, the [Alaskan] canners decided to make a combination and curtail the fishing in the season of 1892."[100]

In 1892, a majority of the Alaskan canneries formed a loose association, the Alaska Packing Association; the members agreed to operate only about nine canneries and divide the profits among the members.[101] This experiment was successful and, in February 1893, twenty-two companies incorporated as the Alaska Packers Association.[102] In the first year, Alaska Packers operated thirteen canneries at nine locations.[103] From 1893 until the turn of the century, it averaged 70% of the annual Alaskan salmon pack.[104]

The first year Alaska Packers operated, it had a net profit of $420,470.[105] In 1900, never having operated at a loss, the net profit was

---

the Alaskan salmon fisheries. The first led to the opening of 30 new canneries; the latter, to the passage of an act for the protection of the salmon fisheries of Alaska. *See id.* at 2–3.

[96]*See id.* at 3.

[97]*See* Greenberg, *supra* note 94, at 2.

[98]MACDONALD, *supra* note 81, at 10.

[99]*See id.*

[100]*Id.*

[101]*See* SMITH, *supra* note 83, at 54.

[102]*See* Greenberg, *supra* note 94, at 2.

[103]*See* Alaska Packers Association Records Microfilm Reel No. 4, "Total Pack 1893-1925: Alaska and Puget Sound; Total Pack 1893-1941: Bristol Bay District; Total Pack 1893-1938: Central Alaska District; and Total Pack 1893-1931: Southeastern Alaska District" [hereinafter APA Microfilm]. The nine locations were: Alitak, Chignik and Karluk (in central Alaska); Nushagak; Copper River; Cook's Inlet; Fort Wrangell and Loring (in southeastern Alaska); and Pyramid Harbor. *See id.*

[104]*See* JEFFERSON F. MOSER, ALASKA SALMON INVESTIGATION IN 1901, H.R. Doc. No. 706 at 350 (1902).

[105]*See* APA Microfiche No. 310, "Alaska Packers Association; Capital Stock; Net Profit; Percentage of Profit."

$770,536.[106] In 1900 there were forty-two canneries operating in Alaska; Alaska Packers operated eighteen of these.[107] Alaska Packers eventually became a division of Del Monte.[108]

C. Pyramid Harbor

The cannery at Pyramid Harbor was the site of the confrontation between the fishermen and the company which led to the law suit. The Pyramid Harbor cannery was one of eighteen canneries Alaska Packers was operating in 1900.[109] Pyramid Harbor is located on Chilkat Inlet, about eighty miles north of Juneau, Alaska. It is on the western side of the Inlet, a mile and a half south of Pyramid Island. The harbor "consists of a small cove in which two or three vessels may find anchorage."[110]

The cannery was on the southern shore of the cove. It was built in 1883, changed hands once, and was burned in the spring of 1889 but immediately rebuilt so that it operated during the 1889 season.[111] In 1892 it was a member of the Alaska Packing Association. In 1893 it became part of the Alaska Packers Association. Alaska Packers' records show the purchase price of the cannery to be $100,745.00, but that was most likely a transfer from the original owners to the corporation in exchange for Alaska Packers Association stock.[112]

The cannery at Pyramid Harbor was operated by Alaska Packers from 1893 until 1904; it was closed for the 1905 season but ran again from 1906 until 1908, when it closed for good.[113] It was abandoned in 1912 and

---

[106]*See id.*

[107]*See* APA Microfiche No. 308, "Canneries Operated in Alaska from the inception of business in 1878." The 18 canneries were operated at 13 locations. In addition to the nine listed above, there were canneries at Naknek, Kvishak, Egegak, and Ugashik. *See* APA Microfilm Reel No. 4, "Total Pack 1893-1941: Bristol Bay District."

[108]*See* Greenberg, *supra* note 94, at 2.

[109]Prior to the formation of Alaska Packers Association, it appears that there were three canneries operating on Chilkat Inlet: Chilkat Packing Co., Chilkat Canning Co., and Pyramid Harbor Packing Co. *See* APA Microfiche No. 345, "Pyramid Harbor."

[110]JEFFERSON F. MOSER, THE SALMON AND SALMON FISHERIES OF ALASKA: REPORT OF THE OPERATION OF THE U. S. FISHERIES COMMISSION STEAMER *ALBATROSS* FOR THE YEAR ENDING JUNE, 1898, H. R. Doc. No. 308, at 125 (1899) [hereinafter MOSER 1898].

[111]*See id.* at 125–26.

[112]*See* APA Microfiche No. 345, "Pyramid Harbor." Interestingly, the name on the plat map for one of the three pre-existing operations (apparently Chilkat Canning Co. as the other two companies' names appear on the other two plats) is Hugh Murray, who was the superintendent of Pyramid Harbor in 1900. *See* APA Microfiche No. 447, "Plat of Amended U.S. Survey No. 3."

[113]*See* APA Microfilm Reel No. 4, "Total Pack 1893-1930: Pyramid Harbor District."

eventually dismantled in the early 1930's.[114] Pyramid Harbor was one of only three canneries closed in the first decade of the twentieth century.[115] The one year break in operations in 1905 is unexplained, but the closing of the cannery at the end of the 1908 season appears to have been driven by economics: Pyramid Harbor was one of the more expensive canneries to operate.[116]

At the turn of the century, a case of salmon from Pyramid Harbor often cost more to produce than a case from other Alaskan canneries.[117] At the same time, the pack from this cannery was considered "the choicest in Alaska."[118] Pyramid Harbor produced salmon mostly for export and the cannery was meticulously run.[119]

Moreover, Pyramid Harbor rather consistently spent a disproportionate amount on fishing gear. For example, in 1899 Pyramid Harbor spent $7,863.08 on fishing gear when it was outfitting to pack 50,000 cases, while Karluk, another cannery, spent $12,180.12 to outfit for 200,000 cases, and the Chignik cannery spent $3,650.15 to outfit for 50,000 cases.[120] The explanation for this seems to be that at Pyramid Harbor the fishing was done almost exclusively with gill nets, whereas other canneries used seine nets or traps.[121] It took more men to operate gill nets; thus, Pyramid Harbor's labor force tended to be disproportionately large.

Not surprisingly, the wages paid per man at Pyramid Harbor were consistently among the lowest in Alaska. In 1901, Alaska Packers began keeping records on fishermen's average earnings, and for every year after that when the cannery was in operation (except the final year) Pyramid Harbor's fishermen earned one of the lowest averages in Alaska.[122] For example, in 1901, Pyramid Harbor fishermen averaged $183.95 for the season, when the average for all of the Alaska Packers' Alaska canneries was $273.24.[123]

---

[114]*See id.*

[115]*See* APA Microfiche No. 310, "Alaska Packers Association Fishermen's Average Earning 1901 to 1910, inclusive."

[116]*See* APA Microfiche No. 336, "Cannery Costs 1893-1946."

[117]*See id.*

[118]JEFFERSON F. MOSER, SALMON INVESTIGATIONS OF THE STEAMER *ALBATROSS* IN THE SUMMER OF 1900, H. R. Doc. No. 706, at 254 (1902) [hereinafter MOSER 1900].

[119]*See id.* at 254.

[120]*See* APA Microfiche No. 336, "Cannery Costs 1893-1946."

[121]*See* MOSER 1898, *supra* note 110, at 126. "Seines have been tried unsuccessfully [at Pyramid Harbor], probably because there are no good seining beaches." *Id.* at 128.

[122]*See* APA Microfiche No. 310, "Alaska Packers Association Fishermen's Average Earnings 1901 to 1910, inclusive."

[123]*See id.*

In 1900 the cannery was equipped with the following machinery: six retorts, two fillers, two toppers, two solderers, one cutter, and one can-making set.[124] Each filling machine could fill 800 cases per day;[125] setting the maximum daily capacity for Pyramid Harbor at 1,600 cases, which was rarely attained.[126] The packing was done entirely by a Chinese crew[127] who lived and ate separately from the fishermen. The Chinese crew was highly specialized at filleting the salmon in pieces sized to fit in the one pound cans. A small number of Native American women, called "klootchmen,"[128] also worked in the cannery doing less specialized work.

Pyramid Harbor packed primarily "redfish," which was the name given to sock-eye salmon.[129] The fish for the cannery were caught in the Chilkat, Chilkoot and Taku Inlets, although most of the fish came from the Chilkat and Chilkoot Inlets.[130] The average annual catch for the cannery fishermen for 1894-1898 was 300,000 redfish.[131] The run was about forty-five days in length.[132]

In addition to fish caught by the cannery's salaried fishermen,[133] the cannery also bought fish from the local Chilkat and Chilkoot tribes. From 1896 through 1900, the cannery bought an average of 147,000 fish annually from about 200 Chilkat and Chilkoot fishermen.[134] However, these tribesmen were not employees of the company. The Native Americans employed their traditional fishing methods: they would fish from canoes or

---

[124]*See* MOSER 1900, *supra* note 118, at 253–54.

[125]*See* MOSER 1898, *supra* note 110, at 27.

[126]*See* MOSER 1900, *supra* note 118, at 254. Moser does not explain the reason for the cannery's infrequent operation of the machines at full capacity. Hypothetically, it could have been due to insufficient numbers of fish, to the physical limitations of the Chinese crew that was cutting up the salmon for the filling machine, or to limits on production imposed by the Association.

[127]*See* MOSER 1898, *supra* note 110, at 23.

[128]*Id.* at 24.

[129]*See* MOSER 1900, *supra* note 118, at 254. The cannery also packed small quantities of king and coho salmon. *See id.*

[130]*See id.* at 254. The Taku Inlet is located about 12 miles southeast of Juneau and thus about 92 miles from Pyramid Harbor. The Pyramid Harbor fishermen took only king salmon from Taku Inlet; the king run earlier than the sock-eye, and once the sock-eye commence to run, fishing for the king in Taku Inlet ceases. *See* MOSER 1898, *supra* note 110, at 126–27. Trial testimony indicated that only fourteen fishermen from Pyramid Harbor were sent to Taku Inlet for the king salmon. Record at 31–32.

[131]*See* MOSER 1898, *supra* note 110, at 127.

[132]*See* MOSER 1900, *supra* note 118, at 254.

[133]A small number of Native Americans were employed as boat-pullers. That is, they made up half of the two-man crew on some of the fishing boats. They then shared in the gillnet catch. *See id.* at 254. *Cf.* Record at 119.

[134]*See* MOSER 1898, *supra* note 110, at 126–27; MOSER 1900, *supra* note 118, at 254, 320.

from a platform built over the stream, using a "gaff" (a long pole ten to twelve feet long with an unbarbed hook on the end, about four inches across the bend).[135] The gaff was thrust into the water and the salmon impaled on the hook; when the fish were plentiful, the gaff could simply be dragged through the water.[136] Although the cannery purchased a large part of its supply from the Native Americans,[137] certain individuals complained that the Native Americans were unreliable.[138]

In 1900, Pyramid Harbor employed ninety-two white and ten Native American fishermen.[139] Eighty-two of the fishermen joined in the lawsuit. From the names on the libel, it appears that a majority of these were Italian. It also appears that at least the Italian fishermen were recruited by a "labor contractor" named G. Viscecova.[140] "Labor contractors" were more prevalent in other sections of the canning industry, such as among cannery workers. By and large, the fishermen avoided the system of labor contractors, but "[i]ntermittently . . . Italians recruited in San Francisco for the Alaska fisheries [had] fallen into the clutches of boss contractors of their own nationality. Whenever this occurred a general lowering of [living] standards resulted."[141] Generally, labor contractors received a fee from the fishermen they recruited.[142] It appears that Viscecova may also have run the messhouse at Pyramid Harbor.[143]

---

[135]*See* MOSER 1898, *supra* note 100, at 127.

[136]*See id.*

[137]This was true throughout southeastern Alaska. *See id.* at 22.

[138]*See id.* at 25.

[139]*See* MOSER 1900, *supra* note 118, at 255. Murray testified that he "thought" Alaska Packers employed "ten crews" of Native Americans, or 20 men, that season. Record at 119.

[140]Record at 145.

[141]L.W. Casaday, Labor Unrest and the Labor Movement in the Salmon Industry of the Pacific Coast 263 (1938) (unpublished Ph.D. dissertation, University of California-Berkeley on file with the author). Even after the fishermen became generally unionized, the system of labor contracting continued, resulting in the union agreements containing express provisions prohibiting the practice. *See id.*

[142] On several occasions the Italian fishermen, in spite of the fact that they belonged to the union, have been known to hire themselves to contractors of their own nationality. For this they paid fees ranging as high as $50 to $100 per season and in addition were forced to accept inferior board and lodging at the canneries as furnished by these contractors.

Id. at 429.

Although it is probable that the fishermen were paying the labor contractor a fee, the evidence is that Alaska Packers was supplying, or at least paying for, their board. *See* MOSER 1898, *supra* note 110, at 127; MOSER 1900, *supra* note 118, at 254.

[143]Murray testified that "Mr. G. Viscasso" ran the messhouse. Record at 82. This name is very similar to "Viscecova," the name of the labor contractor who recruited the men. Record at 145. The similarity leads me to suppose that the two are one and the same, especially given that it was customary for the labor contractor also to board the men. *See*

With this understanding of how the cannery at Pyramid Harbor operated, as well as a broad brush picture of the Alaskan canned salmon industry, it is now possible to consider some alternative narratives to the "traditional story" enshrined in the two court opinions.

IV. ALTERNATIVE STORIES

In this section, alternative readings of the *Alaska Packers'* case are put forth. First, a theory suggested by a reading of the trial transcript is explored: that the nets were indeed serviceable for fishing in Pyramid Harbor, but because the nets were unique to that fishery and because a large majority of the fishermen were both new to Alaska and not fluent in English, they mistakenly believed the nets were inadequate. Conversely, the possibility that the nets were indeed substandard is considered, along with an examination of why Alaska Packers had a motive to supply inadequate equipment. The assumption that Alaska Packers was at the mercy of the fishermen is challenged in the next section. Finally, changes in the labor market are examined as a source of the fishermen's dissatisfaction.

A. The Question of the Nets

At trial the fishermen justified their refusal to work by arguing that Alaska Packers had provided them with substandard nets.[144] The trial court, however, rejected this argument. Although all three of the libelants' witnesses testified that the nets were in poor condition,[145] the court found that this contention was "not sustained by the evidence."[146]

One possible reading of the trial transcript in the *Alaska Packers'* case is that the nets provided by the Alaska Packers were indeed serviceable, but that the fishermen did not realize this, due in large part to differences in language and experience. A review of the individual libelants quickly reveals that most were Italians. Testimony at the trial indicated that most were immigrants[147] and that the majority did not speak English.[148] An

---

Casaday, *supra* note 141, at 429.

[144]*See* Domenico v. Alaska Packers' Ass'n, 112 F. 554, 556 (N.D. Cal. 1901).

[145]*See* Testimony of Andrew Soffocati, Record at 19; Testimony of John Rutge, Record at 43; Testimony of Antonio Jetta, Record at 62.

[146]*Alaska Packers' Ass'n*, 112 F. at 556.

[147] The cannery fishermen are nearly all foreigners, the majority being "north countrymen," or, as they are termed, "hardheads," though there are some fishing gangs comprised of what are called "dagoes," consisting of Italians, Greeks, and the like. When these two classes form different fishing gangs for the same cannery, the north-country crew is

interpreter was present and, on at least one occasion, used at trial.[149] The transcript itself indicates some language problems.[150]

In addition, it appears that for most of the fishermen this was their first year fishing at Pyramid Harbor, although they testified they had experience in other places.[151] The trial testimony strongly suggests that the type of nets used at Pyramid Harbor was different than the type used at other places, such as on the Columbia River.

The Pyramid Harbor fishermen used gill nets exclusively,[152] which were supplied by the company. The nets from top to bottom are sixteen to eighteen feet deep (also described as thirty-two meshes deep).[153] At Pyramid Harbor, each year the top sixteen meshes of the net were new; however, the bottom meshes were not. The bottom meshes were recycled from the top of the preceding year's net.[154]

Apparently, reusing the nets in this way was unique to Pyramid Harbor. There was testimony at trial that on the Columbia River in Oregon and at Orca in Alaska the nets were new each year.[155] The fishermen's complaints about the nets at trial appear to have focused on the old, reused portion of

---

referred to as the "white crew."

MOSER 1898, *supra* note 110, at 23. *See also* Casaday, *supra* note 141, at 105 (noting that "[f]rom the earliest days of the industry the salmon fishermen of the Pacific Coast have been largely of foreign birth").

[148]*See* Testimony of Andrew Soffocati, Record at 23 (stating that "[n]one of us can read and very few of us can speak English").

[149]*See* Testimony of Lucito Arsmus, Record at 135. This one instance of the interpreter's comments appearing on the record is actually from the transcript of the *Bataillou* case, which was incorporated into the record of the *Alaska Packers'* case. *See id.* at 105.

[150]*See, e.g.*, Record at 19, 39, 49, 65, 66 (illustrating language difficulties).

[151]*See, e.g.*, Testimony of Andrew Soffocati, Record at 33 (stating that this was his first year at Pyramid Harbor, although he had thirteen or fourteen years fishing experience); Testimony of John Rutge, Record at 45, 60 (testifying that although fishing his first year at Pyramid Harbor, Rutge had eight or nine years experience fishing Columbia River and in British Columbia); Testimony of Antonio Jetta, Record at 64 (describing two years fishing experience on Orca River, further north in Alaska). *But see* Testimony of Hugh Murray, Record at 98, 113, 144 (testifying as superintendent of cannery that while there were men who had fished two or three years and knew type of nets used, on whole they were a "green" lot).

[152]*See* MOSER 1900, *supra* note 118, at 254. "[W]here the water is discolored gill nets are used . . . where the water is clear, drag seines give the best results." MOSER 1898, *supra* note 110, at 22.

[153]*See* Testimony of Hugh Murray, Record at 107.

[154]*See id.* Murray testified that they had been reusing the nets like this for seven years, ever since Alaska Packers took over the cannery. *See id.* at 82.

[155]*See* Testimony of John Rutge, Record at 51 (stating that meshes in Columbia River were new). Testimony of Antonio Jetta, Record at 64 (stating that it was custom in Alaska to provide new net each year).

the nets. They testified that the nets were hanging in the cannery and that they could tear the meshes by pulling on them with two fingers.[156] One testified that the fish broke right through the bottom of the nets where the mesh was old.[157]

Murray, the superintendent of the cannery, testified that the reason for reusing the nets in this way was because fish are only caught in the upper portion of the net, the top seven or eight meshes.[158] The lower part of the net is there merely to keep the net hanging properly.[159] The reason that fish are only caught in the upper portion of the net at Pyramid Harbor had to do with the conditions of the water where they were fishing. At the point in the channel where they were fishing, the fresh river water floats on top of the denser salt water to a depth of six or seven feet.[160] Because the salmon were found only in the muddy, nutrient-rich, fresh water, there was new netting for the top six or seven feet of the net, where the fish would be. The fish did not strike in the clear salt water that lay below the fresh river water.[161]

Murray testified that when the men first complained to him about the nets, on May 19th, "I explained the way we fished, and the way we got our fish."[162] He also was of the opinion that the few fishermen who had been at Pyramid Harbor before understood about the nets and "could fully explain the kinds of nets we used," although he did not know whether they had.[163] Given the fishermen's language difficulties, and assuming that Murray did not speak Italian,[164] the possibility exists that the men's understanding of what Murray was saying was incomplete.

Assuming for the moment that the fishermen did not understand that the nets were perfectly adequate for fishing at Pyramid Harbor, the case takes on a different complexion. Their misunderstanding might not have affected the ultimate outcome of the case because, after all, there still would not have been justification in fact for their strike. However, any suggestion of duress would have disappeared, as the fishermen would have had a good faith, albeit mistaken, reason for refusing to work.

---

[156]*See* Testimony of John Rutge, Record at 43; *see also*, Testimony of Andrew Soffocati, Record at 19 (describing ease with which nets would tear).

[157]*See* Testimony of John Rutge, Record at 49–50.

[158]*See* Testimony of Hugh Murray, Record at 87, 107.

[159]*See id.* at 87.

[160]*See id.* at 88.

[161]*See id.* at 82.

[162]*Id.* at 108.

[163]*Id.* at 98.

[164]This is an assumption on my part. There is nothing in the transcript to indicate one way or the other whether Murray spoke Italian. *Cf. Id.* at 115 (testifying that he did not speak French).

B. Divergent Interests: An Assumption Called Into Question

Another distinct possibility is that the nets were indeed substandard. The court disbelieved the fishermen because the court assumed that Alaska Packers' self-interest would lead it to furnish the fishermen with good nets. The court took it as a "self-evident fact" that Alaska Packers would provide adequate gear "for on [the fishermen's] success depended the profits defendant would be able to realize that season from its packing plant, and the large capital invested therein."[165] The court thus assumed that the fishermen and Alaska Packers both wished to maximize the number of fish caught. This line of reasoning, however, over-simplifies the economics of the salmon canning industry at the turn of the century. While the fishermen certainly wanted to maximize the number of fish they caught, it should not be assumed that the cannery wanted to as well.

Certainly, the fishermen's self-interest would lead them to want to catch as many fish as possible. At the turn of the century, Alaskan fishermen's wages were made up of two components: "run money" and the price paid per fish.

> From the earliest days of the industry fishermen sent to Alaska from the United States proper customarily have manned the company vessels on the voyage to and from the salmon fields. For this service they are paid what is known as "run money"—a flat sum for the season negotiated in advance. . . .[166]

The run money included payment for anything that was not fishing.[167] As the testimony at trial showed, the fishermen were expected not only to sail the vessel from San Francisco to Pyramid Harbor, but also to unload supplies for the cannery, clean and mend the fishing nets and other equipment, close up the cannery at the end of the season, and load the packed cases of canned salmon onto the ship.[168]

The greatest part of the fishermen's earnings, however, came from the price paid per fish.[169] The original contract gave the men $50 in "run

---

[165]*Alaska Packers' Ass'n*, 112 F. at 556.

[166]Casaday, *supra* note 141, at 267; *see also id.* at 24 (defining "run money").

[167]*See id.* at 24 (stating that run money "is supposed to be in payment for services performed while aboard ship, both ways, and for work other than fishing while at the canneries").

[168]*See* Testimony of Hugh Murray, Record at 90, 128.

[169]*See* Casaday, *supra* note 141, at 270.

money" and four cents per red salmon per boat.[170] As two men manned each boat, this worked out to two cents per man per fish.

Conversely, the canneries needed the fishermen to catch sufficient fish, but not too many. There were no facilities in 1900 for preserving the fish until they could be canned. Moreover, canning the fish was a very labor intensive operation.[171] If the salmon harvest was too bountiful, the cannery workers would not be able to keep up and fish would rot before they could be canned.

Exactly this situation occurred in British Columbia in 1897: "[s]almon ran in vast numbers that year .... The vast numbers of fish delivered each day exceeded the cannery capacity. Until strict limits per boat were imposed on the fishermen, large amounts of salmon lay rotting in trenches dug to receive the overflow."[172] One scholar has noted that "[f]ailure to make use of caught salmon used to be very common."[173] In 1900, the government inspector for the Alaskan canneries commented that the waste in the Bristol Bay district was "strikingly large."[174]

As it turned out, the salmon run during the 1900 season was exceptionally large.[175] "From all parts of Alaska come reports of a large and steady run of salmon: The number of cases packed this year in Alaskan waters will be the greatest on record."[176] At least for Alaska Packers, this prediction proved true: in 1900 for the first time the total pack exceeded one million cases.[177] Of course, in May when the fishermen made their demands, no one

---

[170]*See* Testimony of Antonio Jetta, Record at 63 (testifying that they were paid four cents per boat for each salmon, whether red or king, but that other canneries paid more for king salmon). *But see* Testimony of John Rutge, Record at 44 (testifying in response to leading question on cross-examination that they received ten cents per boat per king salmon). I suspect that this discrepancy is another example of language problems.

[171]The reliance of the canning industry on manual labor existed until 1905, when a machine that prepared salmon for canning was first introduced. The machine, in a striking example of the racism of the period, was called the "Iron Chink." It could do the work of 30 to 40 Chinese laborers and was a significant improvement in the efficiency of the canning process. *See* SMITH, *supra* note 83, at 24–25.

[172]JOSEPH E. FORESTER & ANNE D. FORESTER, FISHING: BRITISH COLUMBIA'S COMMERCIAL FISHING HISTORY 21 (1975).

[173]Casaday, *supra* note 141, at 331 n.74.

[174]MOSER 1900, *supra* note 118, at 187.

[175]Coast Seamens Journal, Aug. 1, 1900, Microform v. 12–13. Taku Inlet, about 92 miles south of Pyramid Harbor, where Pyramid Harbor men had fished for king earlier in the season, reported an "unprecedented" run of salmon as of July 10, 1900, so much so that "[t]he boats fishing for the local cannery have been limited to 1,500 pounds per day." *Id.* I suspect the cannery referred to was not Pyramid Harbor but Taku Packing Company, a small cannery that opened in the spring of 1900. *See* MOSER 1900, *supra* note 118, at 259.

[176]Coast Seamens Journal, Aug. 1, 1900, Microform v.12–13.

[177]APA Microfilm Reel No. 4, "Total Pack 1893-1925: Alaska and Puget Sound."

could know what the run would be like for that season, but they knew the possibility existed that the run could be very large.

There is very little in the trial testimony that sheds any light on the relation between the catch and the Pyramid Harbor cannery's ability to can that catch. Murray, the superintendent, testified that the pack in 1900 was 1,500 to 2,000 cases better than in 1899.[178] He indicated that 2,000 cases represented about 20,000 fish.[179] Murray also testified that the run in 1900 was about the same as the run in 1899.[180] However, Mr. Banning, the attorney for the fishermen, failed to pin Murray down on the comparison between 1900's catch and that from 1899.[181]

If the catches in the two years were comparable while the pack for 1900 increased by 2,000 cases, that would suggest that in 1899 the cannery was unable to process at least 20,000 salmon.[182] It also would suggest that

---

[178]*See* Testimony of Hugh Murray, Record at 86 (testifying that pack was 1,500 cases better). Also testifying in the *Bataillou* case which was incorporated by reference into the record of this case, he said that the number was 2,000 cases. Record at 113. Alaska Packers' records indicate that the total pack for Pyramid Harbor in 1899 was 53,237 cases and in 1900 it was 55,601, an increase of 2,364 cases. APA Microfilm Reel No. 4, "Total Pack 1893-1930: Pyramid Harbor District."

[179]*See* Testimony of Hugh Murray, Record at 113 (suggesting that it takes approximately ten salmon to fill case of forty-eight one pound cans). Government documents from the period indicate that at Pyramid Harbor it took between ten and eleven salmon to fill a case. *See* MOSER 1898, *supra* note 110, at 126 (stating that 10.3 salmon per case were used in 1898 and 1897); MOSER 1900, *supra* note 118, at 255 (11 salmon per case).

[180]*See* Record at 86–87.

[181]A successful canning year depended upon the relationship between three distinct concepts: the salmon run, the catch, and the pack. The run depends upon the health of the fishery; it refers to the number of salmon in the water. The catch depends in part upon the run; if the run is small, the catch is liable to be as well. But the catch also depends upon the numbers and skill of the fishermen. The pack, although affected indirectly by the run and more directly by the catch, is also dependent upon the number of cannery workers and the efficiency of the canning operation.

In the *Bataillou* transcript, this exchange took place (between Mr. Woodworth, Bataillou's attorney, and Murray):

Q. You just testified that the season was just as good as the previous season.

A. I testified that the run of fish was good.

Q. And that the catch was just as good this year as last year?

A. An average catch.

Testimony of Hugh Murray, Record at 144.

[182]The increased pack cannot be explained by any increase in the size of the Chinese canner crew as it was exactly the same size in both 1899 and 1900. *See* MOSER 1900, *supra* note118, at 320–21.

A possible explanation for the increased pack is the fact that in 1900 the cannery bought 47,178 more fish from the local tribes than it had in 1899: 217,074 in 1900 versus 169,896 in 1899. *See id.* at 254. Given that 2,000 cases require about 20,000 fish, this would still leave the canner unable to process some 20,000 salmon.

the company had a motive for making sure the fishermen's catch did not exceed the cannery's capacity.[183]

This motive is reinforced by Alaska Packers' documents indicating the number of cases for which Pyramid Harbor was outfitted. Due to the distance between Alaska and the mainland, cannery superintendents had to plan for the season months before it began and without knowing what the run would be like. In 1900, Pyramid Harbor was outfitted (with materials such as tin, solder, labels, cases, etc.) to can 55,000 cases.[184] In fact, that year it canned 55,601.[185] This suggests that in 1900, Pyramid Harbor was operating pretty much at capacity for the season.[186]

Moreover, in both 1898 and 1899 the pack at Pyramid Harbor had either met or exceeded the number of cases for which the cannery had been outfitted.[187] This suggests that the cannery would not have had many extra supplies on hand from previous seasons. None of these facts, however, came out in the trial.[188]

There is another possible reason for why the cannery might have provided substandard nets. As was pointed out above, Pyramid Harbor's cost per case of salmon was higher than most of the other Alaska Packers' canneries, and it spent more on fishing gear than other canneries of a comparable size.[189] The reason for the disproportionate gear expenditure may have been the need to fish with gillnets, which are an inefficient means

---

[183]The physical capacity of the cannery was 1,600 cases per day, which was rarely attained. *See* MOSER 1900, *supra* note 118, at 254. The operating capacity of the cannery, however, may have been less than its physical capacity. Even with sufficient salmon on hand to can 1,600 cases (approximately 16,000 to 17,000 fish), the cannery crew may not have been able to process that many fish in a day.

[184]*See* APA Microfiche No. 336, "Cannery Costs 1893-1946." There is also the possibility that Alaska Packers artificially limited the number of cases a cannery was supposed to pack. In other words, the number of cases for which a cannery was outfitted may not have represented management's prediction as to how good a season the cannery would have, but rather the market share that was allocated to that cannery. Recall that the original purpose for the formation of Alaska Packers was to control the amount of canned salmon reaching the market.

[185]*See id.*

[186]*See id.* In surveying the APA records for the other canneries, I found that only rarely did a cannery's pack exceed the number of cases for which it had been outfitted. In most cases where the pack did exceed the number of cases for which the cannery had been outfitted, the excess was three thousand cases or less. The largest discrepancy occurred in 1895 at Chignik where the cannery had been outfitted for 60,000 cases and packed 69,963.

[187]*See id.*

[188]Of course, at this time discovery was practically nonexistent. Nevertheless, it is somewhat disconcerting to realize that I have access to information about Pyramid Harbor's 1900 season which was not available to the fishermen's attorney.

[189]*See supra* notes 116–20 and accompanying text.

of fishing for salmon. Thus, if Murray, the superintendent, felt the need to reduce the cost per case, he may have chosen to economize on the nets by recycling portions of last year's nets.

Murray may have been willing to economize on the nets, even though this reduced, to some extent, the fishermen's catch, because he knew he could purchase fish from the local tribes. Each year, the cannery obtained a significant percentage of its fish from the Chilkat and Chilkoot fishermen. The records show that Pyramid Harbor regularly obtained 25% to 40% of its fish from the tribes.[190] In 1900, it purchased over 200,000 fish from them.

Perhaps what Alaska Packers really needed the fishermen for was not fishing, but for sailing the vessel to and from San Francisco, unloading supplies upon arrival in Alaska, and loading the pack at the end of the season.[191] In fact, Murray testified that it was "just as necessary" to have the men discharge the ship as it was to have them fish.[192] The possibility that Alaska Packers was not concerned with maximizing the fishermen's catch due to the availability of fish from the local tribes was not raised at trial.

I suspect that Banning's failure to establish any credible motive for the cannery to provide its fishermen with substandard equipment is an example

---

[190]The following table shows the number of fish purchased from the Chilkat and Chilkoot Indians. The data is compiled from MOSER 1898, *supra* note 110, at 126–27, and MOSER 1900, *supra* note 118, at 254, 320. Keep in mind that during this period the cannery fishermen were averaging 300,000 redfish per season.

Year	No. of Indians selling fish to the cannery	No. of fish the cannery purchased
1896*	~200	159,000
1897**	~300	78,872
1898	192	110,816
1899	196	169,896
1900	224	217,074

*In 1896 the run of fish in the Chilkoot River was so large that the cannery limited its purchases to 100 fish per man per day. MOSER 1898, *supra* note 110, at 127.

**The small number in 1897 is "due to the Klondike excitement." MOSER 1898, *supra* note 110, at 128. Most of the Indians (and about half of the fishermen) left halfway through the season to haul freight over the passes to the gold fields. *See id.*

[191]*See generally* Casaday, *supra* note 141, at 281 (pointing out that having fishermen sail vessels to and from Alaska saved canneries from expense of maintaining sailing crew in idleness during run and that skilled sailors were in demand).

[192]Record at 131.

of what has been called "litigation incapacity."[193] Our adversarial system posits two opposing sides with relatively equal resources. In reality, of course, the two sides frequently are mismatched. In several places, the transcript suggests that Alaska Packers' attorney was very familiar with the salmon canning industry, while Banning was not.[194] This is hardly surprising, given that Alaska Packers was a large, well-funded conglomerate, certainly with more financial resources than the largely illiterate wage laborers on the other side of the case. Indeed, what is surprising is that the fishermen were able to obtain counsel at all.[195]

Banning's trial strategy focused on comparing what the fishermen caught elsewhere and what they caught at Pyramid Harbor in the 1900 season. For example, Banning attempted to present evidence showing that one of the fishermen had caught twenty-nine thousand fish at Copper River, Alaska.[196] At Pyramid Harbor, this same fisherman caught five thousand six hundred fish.[197] From this, he wanted to draw the implication that substandard equipment at Pyramid Harbor led to the reduced catch. This strategy, however, triggered objections from Alaska Packers' counsel[198] and rebuttal testimony that called into question the abilities of the fishermen.[199] Ultimately, Banning's strategy did not persuade the trial judge.

---

[193]Judith L. Maute, *Peeryhouse v. Garland Coal & Mining Co. Revisited: The Ballad of Willie and Lucille*, 89 N.W. U. L. REV. 1341, 1448 (1995); *Cf.* Danzig, THE CAPABILITY PROBLEM, *supra* note 8 (referring to the same phenomenon as the "capability problem").

[194]For example, Alaska Packers' attorney, Gregory at one point says "I have myself seen men at Karluk catch sixty thousand fish at one haul." Record at 62. Also, the firm of Chickering, Thomas & Gregory was listed as the new corporation's attorneys when Alaska Packers first incorporated in 1893. APA Microfilm Reel No. 1, "Alaska Packers Association History 1891-1904."

[195]Counsel for the fishermen was identified as the firm of Woodworth & Banning. E. J. Banning was the trial counsel. *See* Record at 14. In *The History of the Bench and Bar of California*, an attorney by the name of Edward J. Banning is discussed. *See* SHUCK, *supra* note 14, at 995. Assuming this is the same Banning, he was born in 1873 in San Francisco, graduated from St. Ignatius College in 1892 and from Hastings College of Law in 1895. He became assistant U.S. Attorney in December 1898, and according to *The History* was still occupying that position when the book went to press. *See id.* Woodworth, who had been the trial counsel in the earlier *Bataillou* case, was a classmate of Banning's at Hastings; he graduated in 1894. Woodworth also became an assistant U.S. Attorney in December 1898. He became U. S. Attorney in March 1901. *See id.* at 1088. It seems that either being a U.S. Attorney was not a full time position or else Banning had left that office shortly before the trial.

[196]*See* Record at 61.

[197]*See* Testimony of Antonio Jetta, Record at 63.

[198]Mr. Gregory pointed out that the two places were two thousand miles apart. *See* Record at 61.

[199]*See e.g.*, Testimony of Hugh Murray, Record at 83–84 (describing John Rutge as a "very poor fisherman").

Hindsight, of course, has perfect vision, but if Banning had focused on the cannery's capacity and had been able to establish that the 1900 catch met or exceeded the cannery's capacity, then he would have established a motive for the cannery to limit the fishermen's catch. Similarly, if he had been able to bring out the disparities between Pyramid Harbor and other canneries in cost per case and expenditures for fishing gear, along with the extent to which Pyramid Harbor relied on the local tribes, he could have suggested a motive to cut corners on the nets. Either strategy would have bolstered the credibility of the fishermen who testified that the nets were substandard. Moreover, if Banning had been able to bring out the extent to which local tribal fishermen contributed to the cannery's operation, he would have been able to argue that the cannery could have operated even if the fishermen had refused to work during the season. This leads into the "duress" issue.

C. The Question of Duress

As discussed above, both the appellate court and scholars examining the court's opinion have come close to categorizing this case as one involving duress.[200] They point to the short fishing season, the impossibility of obtaining other fishermen, and the significant amount of money Alaska Packers invested in the cannery at Pyramid Harbor. As a result, they concluded that the company had no feasible alternative to agreeing to the fishermen's demands. As Chirelstein phrased it, the company's only other alternative was "the loss of much of its investment in the cannery itself."[201] The company's vulnerability, however, never rose to such a level.

There are at least three reasons why Alaska Packers was not completely without options. First, Pyramid Harbor would still have been able to pack a substantial number of salmon even without the fishermen's catch. Moreover, even if Pyramid Harbor had operated at a loss for the 1900 season that would not have caused Alaska Packers to post a loss. Finally, the fishermen were just as isolated as the cannery and their isolation could have been exploited by the company.

At trial, there was actually not much testimony about the availability of substitutes for the fishermen. Murray was asked if he needed the men's "services as fishermen" and he answered yes.[202] He was also asked if he

---

[200]*See supra* notes 67–78 and accompanying text.

[201]CHIRELSTEIN, *supra* note 75, at 65.

[202]*See* Testimony of Hugh Murray, Record at 108. This testimony was actually from the *Bataillou* case and was incorporated by reference in this case. *See id.* at 105.

could have obtained other fishermen and he answered no.[203] On cross, he was asked whether "there were Indians there that you could have got?"[204] Murray responded that there were "[o]nly a limited number" who come every year.[205]

He was being somewhat disingenuous at this point. While there were only a few Native Americans who were actual employees of Pyramid Harbor,[206] in the five years between 1896 and 1900, the cannery purchased fish from approximately two hundred Native Americans every year.[207] As discussed in the preceding section, these non-employee Native Americans supplied the cannery with significant numbers of fish. Thus, it was highly unlikely that the season would have been a complete failure even if the fishermen had refused to fish.[208] Certainly the assumption that the company's only other option to acceding to the fishermen's demand for increased wages was to lose its entire investment in the cannery is not supported by these circumstances.

As suggested in the preceding section, perhaps the company really needed the men's services as sailors.[209] It is unlikely that the Native Americans would have had the skill, not to mention the desire, to man the sailing vessel back to San Francisco with that season's pack. If the primary concern was with shipping the pack to San Francisco, however, there would have been no time pressure, as there was with the short fishing season. In other words, the company could have brought up replacement sailors and it would not have mattered that they arrived after the run of salmon.

Furthermore, what is overlooked in this picture of the company at the mercy of the recalcitrant fishermen is that Alaska Packers was a trust, a combination of a number of independent canneries. In 1900, Alaska Packers operated eighteen canneries in Alaska and two more on Puget Sound.[210] Part of the purpose of Alaska Packers was to protect individual canneries from catastrophic losses, such as the loss of the ship bearing the entire season's

---

[203]*See id.* at 109.

[204]*Id.* at 121.

[205]*Id.* at 121–22.

[206]*See id.* at 119 (stating that in 1900 there were ten or twenty Native American employees); *see also* MOSER 1900, *supra* note 118, at 255.

[207]*See supra* note 190 (table showing number of fish purchased from Chilkat and Chilkoot Indians).

[208]It is also not clear if all the Pyramid Harbor fishermen were involved in the work stoppage. Moser indicates that there were 92 white and 10 Native American fishermen, but only 82 are listed as libelants. *See* MOSER 1900, *supra* note 118, at 255.

[209]*See supra* notes 191–92 and accompanying text.

[210]*See* APA Microfilm Reel No. 1, "Alaska Packers Association History: 1891-1904."

pack, which were part and parcel of the salmon industry.[211] Even if the cannery at Pyramid Harbor had not canned a single tin of salmon and its entire season had been a loss, it would not have had a profound effect on Alaska Packers' bottom line.[212]

The cannery at Pyramid Harbor did not represent a major part of Alaska Packers' operations. In 1900, Pyramid Harbor packed 55,601 cases of canned salmon, which as it turned out was the cannery's best year.[213] Alaska Packers' total pack for Alaska and Puget Sound that year was 1,004,318.[214] Thus, in 1900, Pyramid Harbor represented 5.5% of Alaska Packers' total output.

Alaska Packers' net profit for 1900 was $770,536.[215] The market value of Pyramid Harbor's 55,601 cases was approximately $230,000.[216] It cost Alaska Packers $170,190 to pack the 55,601 cases.[217] This indicates that Alaska Packers' profit from the Pyramid Harbor pack was about $58,885. Subtracting that from Alaska Packers' overall net profit still leaves a net profit of more than $700,000.

In other words, from this perspective, Alaska Packers could have called the fishermen's bluff. Given the disparity in their economic resources, the fishermen would have suffered far more from the loss of a season's income than Alaska Packers would have.[218]

It has been suggested, however, that evaluating the coerciveness of the fishermen's threat not to work from the point of view of Alaska Packers is

---

[211]Another purpose was to avoid flooding the market with canned salmon, thereby driving down prices.

[212]The relative insignificance of the Pyramid Harbor events is reflected by a comment made by, Mr. Gregory, the attorney for Alaska Packers. At the end of the trial, he referred to the case as "a very small one." Record at 145.

[213]*See* APA Microfilm Reel 4, "Total Pack 1893 to 1925: Alaska and Puget Sound."

[214]*See id.*

[215]*See* APA Microfiche, No. 310, "Alaska Packers Association: Capital Stock; Net Profit; Percentage of Profit."

[216]*See id.* No. 309, "Alaska Packers Association: Net Prices for Canned Salmon per case of 48-1lb. cans." In 1900, the net price, based upon San Francisco delivery, was $4.12 per case of red salmon. The net price for other types of salmon was lower. *See id.* Although not all of Pyramid Harbor's pack was made up of red salmon, most of it was, so I have used that price to compute the market value of the 1900 pack.

[217]*See* APA Microfiche, No. 336, "Cannery Costs 1893-1946."

[218]There was testimony at trial that most of the fishermen had families to support. Testimony of Andrew Soffocati, Record at 29. Moreover, the trial court ruled that signing releases did not bar the fishermen's suit, relying on an admiralty rule that recognized fishermen's straightened circumstances often led to their compromising their rights. *See Alaska Packers' Ass'n*, 112 F. at 560.

inappropriate.[219] Certainly, perception of coercion depends upon the frame of reference. From the point of view of Hugh Murray, the superintendent of Pyramid Harbor, the situation may have seemed coercive; his compensation and perhaps even his job may have depended upon the success of the cannery's season. But this only establishes that his self-interest may have conflicted with the company's.

There is an additional reason why the distribution of bargaining power between the fishermen and Alaska Packers was not all on the fishermen's side. The messhouse operator, once he found out that the men were not working, refused to serve them meals and only Murray's intervention persuaded him to continue to do so.[220] This suggests that the company could have leveraged the fact that the men had no other source of victuals in the same way the men were leveraging the company's lack of substitute fishermen. During labor unrest in the mid-1930's, packing companies "threw [striking fishermen] on the beach," "that is, they deprived the men of board and lodging and forced them to shift for themselves."[221] This may not have been an option for Murray; he testified that the fishermen threatened to break into the messhouse and help themselves, and that he ordered the messhouse operator to feed them because he did not want any trouble.[222]

Even putting aside the company's ability or desire to withhold food, the historical record suggests that Alaska Packers was not faced with a Hobson's choice when the fishermen threatened a work stoppage. The company had access to a substantial number of salmon as a result of the efforts of the local Native American fishermen. Moreover, Alaska Packers had more financial resources than the immigrant fishermen and could have absorbed the loss of Pyramid Harbor's season.

D. Changes in the Labor Market

There was a cartoon hanging in the lobby of the "Scandinavian Rooms" in Juneau, Alaska, in the early part of this century.[223] The cartoon, entitled "A Fish Story," shows a thin, bedraggled fisherman in his boat, holding up the tail of a salmon.[224] The fisherman is saying: "Is this my share[?]."[225] On the dock stands a large-bellied, grinning man, dressed nattily in a suit with

---

[219]This suggestion was made by a member of the audience at the Symposium at which an earlier version of this paper was given.

[220]*See* Testimony of Hugh Murray, Record at 89–90.

[221]Casaday, *supra* note 141, at 460–61.

[222]*See* Testimony of Hugh Murray, Record at 89–90.

[223]*See* Casaday, *supra* note 141, at 261.

[224]*See id.* (depicting cartoon).

[225]*See id.*

top hat and spats; on his suit coat appears the legend "Fish Trust."[226] He answers the fisherman: "It's the same as you always get — what ya kicking about?"[227] In the waters of the bay, a mermaid pleads with Neptune, the god of the sea: "Father Neptune can't you help that poor fisherman?"[228] And Neptune, pipe in hand, muses: "You can't help anyone who won't help themselves."[229] Neptune is, of course, referring to the failure of the fishermen to organize.

In Alaska Packers' view of the case, the fishermen had gone on strike solely to get more money. At the end of the trial, Mr. Gregory, the attorney for Alaska Packers, called a Mr. G. Viscecova to the stand. He was the labor contractor who recruited the fishermen for Pyramid Harbor.[230] Gregory sought to have this witness testify as to a letter he had received, apparently from some of the libelants, but the court excluded the letter as hearsay. In the letter, according to Gregory, the writer or writers admitted that they had "gone on strike" for better wages.[231] Moreover, Murray testified that there was some talk at the time of the work stoppage that the fishermen should have had $100 for run money from the beginning.[232]

One explanation for why the Pyramid Harbor fishermen demanded an increase in wages could be that, when they agreed to the original terms, they were proceeding with imperfect information regarding Alaskan wages. Then, when they arrived in Pyramid Harbor, they discovered that other fishermen in the immediate vicinity of Pyramid Harbor were earning more than they were.

In the spring of 1900, two new small canneries had opened in the vicinity of Pyramid Harbor. Neither were members of the Alaska Packers' Association. One was the Chilkoot Packing Company, which was located at the head of Chilkoot Inlet, and the other was Taku Packing Company, which was located in Taku Inlet where Pyramid Harbor fishermen fished for king salmon early in the season.

The company that opened the Chilkoot cannery was from Aberdeen, Washington.[233] It employed 24 white and 8 native fishermen and purchased fish from another 16 natives.[234] The fishermen were recruited from the Puget

---

[226]*See id.*

[227]*See id.*

[228]*See id.*

[229]*See id.*

[230]*See* Record at 145. Viscecova also apparently ran the messhall. *See supra* note 143 and accompanying text.

[231]*See* Record at 145.

[232]*See* Testimony of Hugh Murray, Record at 129.

[233]*See* MOSER 1900, *supra* note 118, at 255.

[234]*See id.* at 256.

Sound area and they were paid $25 per month from the time of departure from Puget Sound to the date of return, plus 5 cents for each redfish per two man boat.[235] Even accounting for the fact that it probably did not take as long to sail from Puget Sound as it did from San Francisco, the Chilkoot Packing Company fishermen were making more than the Pyramid Harbor fishermen, probably at least $75 in run money plus the extra half cent per man per fish.

The Taku Packing Company was organized in Astoria, Oregon, and thus probably recruited fishermen from that port.[236] It employed 30 white and 14 native fishermen. The Taku fishermen received $80 for the season and 5 cents per redfish per two man boat.[237] Again, these men were earning more than the Pyramid Harbor fishermen.

It is highly probable that, after arriving at Pyramid Harbor, the fishermen discovered that they were being paid less than the fishermen at the two closest canneries. Moreover, these other fishermen were getting more run money even though they were traveling less distance. Perhaps the men also became aware for the first time that, as little as two years previously, the cannery at Pyramid Harbor was paying $100 in run money, though only 3 cents per fish per boat.[238]

The following demonstrates a likely scenario: In San Francisco, the men were not organized. They were of different nationalities, although predominantly Italian.[239] They probably did not belong to a union. They scarcely knew their fellow fishermen. They were new to Alaska. After they arrived in Alaska, for the first time they had the opportunity to talk with the few fishermen who fished at Pyramid Harbor in the past and they discovered that the average catches were not what they thought they would be. The nets were different, not like they were used to using. Accordingly, their concerns about their ability to earn a living wage increased. In addition, they discovered that other nearby canneries were paying their fishermen more

---

[235]*See id.* at 255.

[236]*See id.* at 259.

[237]*See id.*

[238]*See* MOSER 1898, *supra* note 110, at 127.

[239]Interestingly, a fair number of all the Alaskan fishermen of Italian nationality seem to have been at Pyramid Harbor in 1900. The annual report of U.S. Shipping Commissioners indicated that in 1900, 16,212 were shipped at the San Francisco office. Of these, "4,910 were native Americans [meaning U.S. citizens], 2,959 Scandinavians, 3,433 British, 1,259 Germans, 144 Italians, 216 French, and 3,291 of various other nationalities, including Chinese and Japanese." Coast Seamen's Journal, December 19, 1900, Microform v.14–15. Perhaps this is a consequence of the labor contracting system. *See supra* notes 140–42 and accompanying text.

than Pyramid Harbor. Together in a foreign place, isolated from outside influences, they coalesced into a group and went on strike.

Interestingly, there appears to have been a repeat of the Pyramid Harbor strike two years later at Bristol Bay, in western Alaska. On June 24, 1902, seven hundred fishermen went on strike demanding an increase in pay per fish, from two to three cents per red salmon. The strike lasted four days, at which time the cannery gave in to the men's demands.[240] Apparently, however, just as with this case, the company at the end of the season refused to pay the increased amount and the courts upheld the company.[241] According to the *Coast Seaman's Journal*, there was a lesson to be learned here: "[t]heir present experience should teach the Alaskan fishermen that the proper place to raise wages is in San Francisco, and the proper time when they are signing articles. To wait until they are on the grounds and the fish begin to run is to take bigger risks than fish, to say the least."[242]

IV. CONCLUSION

Although history is interesting for its own sake, the point of developing as fully as possible the history of the *Alaska Packers'* case is to contribute to our understanding of the law. This article attempts to do that by looking beyond the authoritative narrative enshrined in the judicial opinions to a more complete, and more complex, story.

An important lesson that emerges from this work is the insidious way in which assumptions about how the world works influence litigation outcomes. Because District Judge De Haven assumed the "self-evident fact" that Alaska Packers would want the men to catch as many fish as possible, he did not find the men's testimony regarding the inadequate nets to be credible. Because of his assumption, he could see no motive for the company to provide substandard nets. The possibility that there could be too many fish, or that the cannery was trying to cut corners on its equipment, did not occur to him.

Other assumptions have led to this case being thought of as a case of duress. Assumptions about language, experience, and perhaps class led to the conclusion that the men were motivated solely by a desire for more wages and obscured the possibility of honest misunderstanding. Crucial to seeing this case as one of coercion is the assumption that, if the men had refused to work, Alaska Packers had no other means of obtaining salmon and would have lost its investment in the cannery. The substantial contribu-

---

[240]*See* Coast Seamen's Journal, August 6, 1902, Microform v.14–15.

[241]*See* Casaday, *supra* note 141, at 411.

[242]Coast Seamen's Journal, September 17, 1902, Microform v.14–15.

tions of the Native American fishermen to the cannery's operation, as well as the resources of the fish trust, are not seen.

By developing the social and economic history of the case, I have tried to call these assumptions into question. My goal is not to "prove" the outcome of the case wrong. Rather, it is to "shake things up," to destabilize the received wisdom about the case and to suggest other ways of looking at the litigation. I hope that this fuller historical narrative will enrich classroom discussion and provoke debate, both about the merits of the case and about our adversarial system of justice.